

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC,

Plaintiff,

vs.

Case No. 2015-CC-003560

DAVID KNOX and UNKNOWN
TENANT(s),

Defendants.

**MOTION FOR FINAL JUDGMENT FOR DAMAGES,
LIEN ENFORCEMENT AND JUDICIAL SALE**

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through the undersigned counsel, and moves this Court to grant final judgment against Defendants, DAVID KNOX and UNKNOWN TENANT(s), in the above-styled cause and Plaintiff alleges the following facts:

1. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, filed suit under Florida Statute §723.061(1)(a), for removal of a mobile home park lot tenant, for possession of the Plaintiff's real property, for damages and to enforce Plaintiff's landlord lien pursuant to Florida Statutes §713.691 and §713.77.

2. Plaintiff brought this action against the Defendants, by posting service upon Defendants, DAVID KNOX and UNKNOWN TENANT(s) a copy of the Complaint Seeking Eviction, Damages and Other Relief and a copy of the Summonses on September 28, 2015. A copy

of the documents referenced above were furnished to Defendant, DAVID KNOX, via U.S. Mail to Post Office Box 266, Pine Knot, Kentucky, 42635, as evidenced by the Certificate of Mailing issued and filed by the Clerk of Court on September 25, 2015.

3. No monies have been deposited with the Registry of the Court.
4. Defendant, DAVID KNOX, is the registered owner of the mobile home located at 900 - 9th Avenue East, Lot #192, Palmetto, Florida.
5. There are no lien holders on the mobile home known to the Plaintiff.
6. Defendants, DAVID KNOX and UNKNOWN TENANT(s), have been ordered to be removed from possession of Lot #192 of Colonial Mobile Manor and Plaintiff has been placed in possession of it.
7. Plaintiff obtained its Judgment for Possession of the premises arising out of violation of the mobile home Rental Agreement against Defendants, DAVID KNOX and UNKNOWN TENANT(s), on October 20, 2015.
8. Defendant, DAVID KNOX, owes Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, the sum of \$1,861.16 pursuant to the Affidavit of Indebtedness of Plaintiff's Park Manager, incorporated into this Motion and attached hereto as Exhibit A.
9. Pursuant to Florida Statutes §713.691, Plaintiff is entitled to a landlord's lien against Defendant's personal property in the possession of the Plaintiff.
10. By virtue of this lien, the Writ of Possession issued on November 5, 2015 was served upon Defendants (by posting) on or about November 10, 2015; Plaintiff has come to be in possession of the personal property of the Defendant, DAVID KNOX, found on the Plaintiff's real property, perfecting its landlord lien.

11. The personal property belonging to Defendant, DAVID KNOX, located at 900 - 9th Avenue East, Lot #192, Palmetto, Florida, is described as a double wide mobile home identified as a:

**1984 (unknown make) double wide mobile home
Vehicle Identification No. 23650327AT, Title No. 004189117 and
Vehicle Identification No. 23650327BT, Title No. 0041885602.**

12. Pursuant to Florida Statutes §45.031, Plaintiff is entitled to a judicial sale of the personal property, that is, the mobile home to satisfy its judgment against Defendants.

13. Pursuant to Florida Statutes §723.068, Plaintiff is entitled to an award of attorney's fees and costs by virtue of prevailing in this action to enforce rights arising out of a mobile home lot rental agreement. Plaintiff attaches an Affidavit of Attorney's Fees, as Exhibit B, and seeks an award of \$1,500.00, along with an Affidavit of Costs, attached as Exhibit C seeking an award of \$732.34.

WHEREFORE, Plaintiff demands judgment for damages, costs, and attorney's fees in the total sum of \$3,988.50 for a judgment entitling Plaintiff to enforce its judgment by judicial sale of the personal property of Defendant, DAVID KNOX, and an order setting the judicial sale of Defendant's property, to-wit:

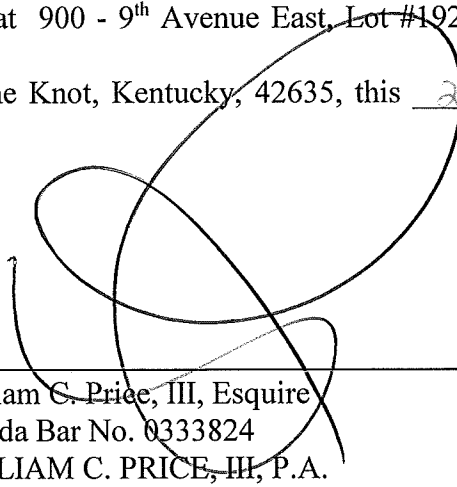
**1984 (unknown make) double wide mobile home
Vehicle Identification No. 23650327AT, Title No. 004189117 and
Vehicle Identification No. 23650327BT, Title No. 0041885602**

pursuant to Florida Statute §45.31, and to reserve jurisdiction to enter such further orders as are necessary to effectuate this judgment.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Final Judgment for

Damages, Lien Enforcement and Judicial Sale has been furnished by U.S. Mail to Defendants, DAVID KNOX and UNKNOWN TENANT(s), at 900 - 9th Avenue East, Lot #192, Palmetto, Florida, 34221, and at Post Office Box 266, Pine Knot, Kentucky, 42635, this 20th day of November, 2015.



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